

Court No. - 21

Case :- WRIT - C No. - 36484 of 2012

Petitioner :- M/S S.S. Cold Storage And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Amrit Lal Yadav,A.N. Singh

Hon'ble Vineet Saran,J.

Hon'ble Mushaffey Ahmad,J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Sri Amrit Lal Yadav, learned counsel for the respondents no. 1 and 2 and Sri A.N. Singh for the respondent no. 3.

By means of this writ petition, the petitioners have prayed for quashing the demand notice dated 9.5.2012 passed by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submit that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided without

prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

Order Date :- 31.7.2012

AbHishek

(Mushaffey Ahmad, J.) (Vineet Saran, J.)